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File No.: EXP202209498

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 23/07/2022 regarding a possible violation of the provisions of personal data protection regulations.

The reasons for the complaint are as follows:

“On the day ***DATE.1 someone made a public announcement with my photo and my data, since that day this person who published the announcement has been contacting people from contact pages to have them talk to me via WhatsApp or Instagram and they keep writing or calling.”

Along with her complaint, she provides:

1- A screenshot displayed at ***URL.1, which is referenced with the number ***REFERENCE.1, along with the date: “***DATE.1”, with the title “***TITLE.1”, and the text “28 years old...”, continuing with a sexual offer in exchange for money. At the bottom, her photograph is associated with the mobile contact number “***PHONE.1” (which matches the one listed in the complainant's complaint).

2- A JPG file which, according to the complainant, is an “email received by one of those people,” showing an announcement in a comment, her phone number, and an address. Specifically:

A screenshot is visible that, in the first field of the submission, under “name,” shows: A.A.A., below which is listed email: ***EMAIL.1.

In “comment: (...).

write me on Insta XXXXXXXXXX or call me ***PHONE.1”

At the bottom, it states: “Manage all your ads from here: ***EMAIL.2

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3- Printout of an image with a screenshot, with file number: XXXX.PNG, according to the form of the complaint filled out by the complainant, is the person who “contacted me on the day XX/XX” upon seeing one of the ads.

On the screen, a chat appears, with the text:

“-Hello A.A.A.

-I came from seeing you in an ad on contactos.clasf

And I wanted to know if the services are still available.”

In response: “My identity is being impersonated

-Can you please send me the ad?

-To report it.”

SECOND: On 13/09/2022, the General Subdirectorate for Data Inspection confirmed in order to obtain evidence for the admissibility of the complaint:

-Accessing the website pasión.com, a search was conducted for the ad in contacts, using the reference number ***REFERENCE.1, without finding it.

-Entering the website: ***URL.2 and searching using the phone number ***PHONE.1, in “contacts” without finding any active listings.

THIRD: On 14/09/2022, in accordance with Article 65 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions (AI/00337/2022) to clarify the facts in question, by virtue of the functions assigned to the control authorities in Articles 57.1 and 58.1 of Regulation (EU) 2016/679 (General Data

Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

1- The Data Inspection Service requested on 27/09/2022 from MUBA ONLINE S.L.U., responsible for the website ***URL.1, where an ad is published, reference ***REFERENCE.1, to report on:

“1. Date of publication and date of removal of the aforementioned contact ad which can be found attached to this document

2. All data available regarding the user who published the contact

3. IP address, date, and time when the ad was published

4. Any other information that allows identifying the person responsible for the publication

CAUTIONARY MEASURE: The aforementioned contact ad must be removed at least for the duration of the present proceedings.”

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With the request, a screenshot provided by the claimant was sent, and it is detailed in point 1 of the first fact, regarding the advertisement on pasión.com, where the date 2023-07-14 is visible on the right margin.

They responded on 27/09/2022 that: “The only advertisement found related to that user account is the following:

***REFERENCE.1

“***TITLE.1. (Contacts women in ***LOCATION.1)

(...).

Name: A.A.A.

Email: ***EMAIL.3

Published: XXXXXXXX

IP: ***IP.1

Proxy: ***PROXY.1

The advertisement was found in the table of deleted ads because it had either expired or the user of the email account ***EMAIL.3 had deleted it. The expiration of the advertisement was set at 15 days, and the expiration date was marked as 2022-08-01 22:34:09. This means that if the user ***EMAIL.3 did not delete it before, the advertisement expired on that date. They do not store the deletion date in their database.

- On 28/12/2022, an action was taken by the Data Inspection Service for an internet query in the WHOIS database for the IP address ***IP.1 corresponding to the advertisement (***URL.1), and it was verified that it is managed by Telefónica de España (TDE).

- The Data Inspection Service requested on 29/12/2022 from TDE the “data of the holder of the IP address ***IP.1, on 17/07/2022 at 21:44:14. The name and surname, postal address, identity document number, and email address must be provided.”

TDE informed this AEPD on 5/01/2023 that the IP address ***IP.1, (***URL.1) at 21:44:14 on 17/07/2022, was assigned to the line ***PHONE.1, whose details are as follows:

Name and surname: B.B.B., (hereinafter, the respondent), providing their NIF and address.

2- Inspection action of 27/09/2022, which reflects that the responsible party for the advertisement portal ***URL.2 is SERVICIOS GENERALES DE COMERCIO ONLINE SL, (SGCO), which was requested on that same date:

“1. Date of publication and date of cancellation of the aforementioned contact advertisement that you can find attached to this document

2. All data available regarding the user who published the contact

3. IP address, date, and time when the advertisement was published

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4. Any other information that allows identifying the person responsible for the publication
PRECAUTIONARY MEASURE, The aforementioned contact advertisement must be deactivated for at least the duration of the present proceedings.”

The request for information was accompanied by the screenshot mentioned in the first fact, point 2 regarding the documentation provided by the claimant (email name: A.A.A.)

SGCO in its response of 4/10/2022 stated that, upon consulting its information systems, “the attachment that has been sent is a screenshot of an email generated through the 'Contact' form of an advertisement, to request information, but it is not an advertisement itself.”

The “attachment is a screenshot of an email received by the person who published the advertisement titled “XXXXXXX.”

This email was received because someone completed the information request form for that advertisement.

The connection data for this information request,
Name A.A.A.

Email ***EMAIL.1

Phone

Message ***MESSAGE.1

Acceptance of Terms
of use and privacy Yes

IP ***IP.1

Date XXXXXXXX

- The advertisement titled "XXXXXXX," to which the advertiser was sent the email provided by the complainant, has the following data:

Title XXXXXXXX

Text

(...).

Contact details (...). Publication date XXXXXXXX

IP ***IP.1

In response to the AEPD's request to deactivate the advertisement while the investigation is ongoing, they have deactivated the advertisement "XXXXXXX."

They conducted a search in their records to see if any other information requests had been made with the same contact details, and no results were obtained.

- By the Data Inspection Service, on 28/12/2022, information was queried on the “whois” website regarding the IP address ***IP.1 corresponding to the email received upon completing the information request form for the first advertisement (no results were obtained).

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investigated the IP of said advertisement as it does not contain information from the complainant).

This address corresponds to XXXXXXXXXX located in Germany.

By the Data Inspection Service, a written request was sent on 29/12/2022, requesting information that was delivered, but no response was received.

3- On 30/03/2023, a request for information from this AEPD was collected at the address of the respondent, directed to the holder of the IP responsible for the publication of the advertisement on the website ***URL.1, C.C.C., (the same address provided by TDE) to provide the legal basis for the publication of a contact advertisement that includes personal data of the complainant. The submission was sent with a screenshot of the advertisement displayed on ***URL.1, which is referenced with the

number ***REFERENCIA.1, dated "14/07/2021", with the title "***TÍTULO.1" and is advertised with "28 years old...", continuing with a sexual offer in exchange for money. At the bottom, their photograph is associated with the contact number "***TELÉFONO.1" (which matches the one listed in the complainant's claim). It was also indicated that the advertisement was published on 17/07/2022 assigned to an IP related to the phone line ***TELÉFONO.1.

No response was received to this request from the recipient, marked "delivered on 30/03/2023."

FIFTH: On 20/07/2023, the Director agreed:

"TO INITIATE SANCTIONING PROCEDURE against C.C.C., with NIF ***NIF.1, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR and for the purposes of the prescription of the infringement in Article 72.1.b) of the LOPDGDD.

"That for the purposes provided in Article 64.2 b) of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations, (hereinafter LPACAP) the sanction that may correspond would be €10,000.00 (ten thousand euros), without prejudice to what results from the instruction."

SIXTH: On 14/09/2023, allegations were received from the complainant, which indicate:

1)

The entity authorized to present the allegations on behalf of the respondent submits a copy of the respondent's ID, born in 1948, age 75 years, and provides their certificate of (...) since 30/11/2020 and certified in a residence from 15/03/2022 to 31/05/2023, where they indicate they were recovering from an illness they mention, a period that coincides with the publication of the advertisement on ***URL.1.

2)

They state that they are accused of committing two acts, one derived from the advertisement on ***URL.1, and the other from ***URL.2, which has an IP ***IP.1, regarding which there is no evidence of their identity, and this accusation should not be maintained as it is contrary to law.

They add that in the advertisement published on ***URL.1, the date of 14/07/2021 referred to in the initiation agreement is likely incorrect, and should be ***FECHA.1.

3)

Regarding the IP that according to TDE corresponds to their line, on the 17th at the time indicated in the agreement, they state that "they have a personal desktop computer and that other family members who live with them at their home regularly use that computer, as well as the connection of other telematic devices that are linked to the aforementioned telephone line."

As it is a domestic connection, "the security of domestic routers is not inviolable and much less if the default configuration is not modified before starting to use them. In this sense, on the Internet and without even having advanced knowledge in computing, programs capable of discovering the IPs of other people and usurping their identity for fraudulent use can be found." They refer to support their argument the ruling of the Supreme Court 836/202 of 3/12/2012, with a reference from CENDOJ, which corresponds to that of the second chamber of criminal matters, ruling 987/2021 of 3/12/2012, rec 2429/2011, ECLI: ES:TS:2012:8316, in a case of computer fraud: Phishing. Internet transfer order via keys obtained fraudulently. To exculpate the accused, the Court assesses the address "ip of a connection via modem, not router," indicating that: "This implied information to the internet of the ports that were available on the PC, which is a factor of vulnerability recognizable by other users of the network. From these, a malicious attacker can exploit that vulnerability to use the foreign equipment, with its use being recorded as if the authentic holder were the one using the IP in that manipulation of the equipment, with no other condition than that the equipment of the true holder is turned on. And this without the holder even being able to notice that malicious and foreign use of their equipment.

The report supports its conclusions with experiences it recounts and warns that even such a possibility does not require highly qualified training in the invader who even has tools available on the same network. In this regard, it provides a wide list of links where step-by-step tutorials can be obtained to take control of another computer."

"The ruling itself admits that this report proves the 'possibility' of such an attack on an innocent holder."

4) The respondent proposes as evidence:

- Request TDE:

4.1 "Issue a certificate of the IP assigned to the telephone line ***TELÉFONO.1 on 17/07/2022 at

21:44:14 h."

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4.2 "Issue a certification indicating how many clients were awarded the aforementioned IP on 17/07/2022 at 21:44:14."

4.3 "Issue a certification indicating whether the CARRIER GRADE NETWORK ADDRESS TRANSLATION-CG-NAT technique applies, which allows the use of the same public IPV4 for multiple internet clients simultaneously."

- 4.4 It is requested that MUBA ONLINE, responsible for the site ***URL.1, provide the photograph published with the advertisement referenced as ***REFERENCIA.1, and that the claimant be asked for her photo and date of birth, or alternatively, that the AEPD provide the photograph if it is already in their possession, in order to compare it with the one published in the aforementioned advertisement.

- 4.5 Regarding the address ***EMAIL.3 that was associated with the advertisement published on pasión.com, as well as the email ***EMAIL.3 (related to the advertisement titled XXXXX" from ***URL.2), request the identification and all personal data from the service provider, GOOGLE.

- 4.6 Regarding the line ***TELÉFONO.1 (related to the advertisement titled "I offer 400 €" from ***URL.2), request the personal data of the holder.

- 4.7 Regarding the email ***EMAIL.3 and the email ***EMAIL.4 (related to the advertisement titled XXXXXXXX" from ***URL.2), the ownership.

- 4.8 That the AEPD provide a screenshot of the two advertisements submitted by the claimant to contrast the responses given by MUBA ONLINE and SERVICIOS GENERALES DE COMERCIO ONLINE, given the discrepancies between what is indicated in the facts of the initiation agreement and the responses from both (publication date: advertisement on pasión.com and lack of phone number on ***URL.2).

- 4.9 Expert opinion consisting of a judicial computer expert issuing a technical report on the claimant's desktop computer regarding the internet activity during the publication dates of both advertisements, and that the reported IP may have been used by an unknown third party for the creation of the aforementioned advertisements.

4.10 That the AEPD certify that it has requested prior authorization from the judicial body to obtain the IP from the operator TDE, as provided for in Article 52 of the LOPDGDD.

SEVENTH: On 06/06/2024, a resolution proposal was issued stating: "That the Director of the Spanish Agency for Data Protection ARCHIVE the sanctioning procedure initiated against C.C.C., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified in Article 83.5 a) of the GDPR, qualified for prescription purposes as very serious in Article 72.1.b) of the GDPR."

No allegations were received against it.

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PROVEN FACTS

FIRST: The claimant complains because someone possessing some of her data has posted an advertisement with her photograph and mobile phone number.

She attaches a printout of the advertisement on ***URL.1, with reference ***REFERENCIA.1, dated 2022-07-14, a literal offering of sex for money, and the phone number that matches the one provided by the claimant, along with her photograph.

SECOND: When questioned in previous investigative proceedings, the responsible party for the aforementioned page ***URL.1, MUBA ONLINE SLU, on 27/09/2022, responded that the advertisement reference is related to "a user account," and that the advertisement was published on

17/07/2022 at 21:44:14, a date that does NOT COINCIDE with the one listed alongside the reference of the advertisement provided by the claimant, which states: ***FECHA.1. MUBA also identifies the IP from which the advertisement was placed, ***IP.1, on 17/07/2022 at 21:44:14, also noting the name A.A.A., email: of the account user: ***EMAIL.3.

Regarding the status of the advertisement, MUBA responded that "it was in the deleted advertisements table," without being able to verify whether it was deleted by the account user or after the established 15-day expiration period of the advertisement.

THIRD: On ***FECHA.2, the General Subdirector for Data Inspection confirmed in order to obtain evidence for the admissibility of the complaint THAT "accessing the web pasión.com, a search for the advertisement in contacts was conducted using the reference number, ***REFERENCIA.1, without finding it."

FOURTH: -On 28/12/2022, an INTERNET CONSULTATION diligence was carried out by the Data Inspection Service in the WHOIS database for the IP address ***IP.1 corresponding to the advertisement (***URL.1) and it was verified that it is managed by Telefónica de España (TDE), from which the "data of the holder of the IP address ***IP.1, on 17/07/2022 at 21:44:14" was requested on 29/12/2022.

TDE informed this AEPD on 05/01/2023 that the IP address ***IP.1, (***URL.1) at 21:44:14 on 17/07/2022, was assigned to the line ***TELÉFONO.1, whose details are as follows: Name and surname: C.C.C., (hereinafter, the respondent), providing his NIF and address.

FIFTH: Additionally, in her complaint, the claimant also provides a screenshot, showing in the first field of the submission, "name," A.A.A., below; email: ***EMAIL.1.

In "comment: Holaaa I am (...). write me on insta XXXXXX or call me ***TELÉFONO.1" (the mobile phone line that matches the one the claimant states in her complaint)

At the bottom, it states: "Manage all your advertisements from here: ***EMAIL.2

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The Data Inspection Service, dated 27/09/2022, reflects that the responsible party for the portal ***URL.2 is SERVICIOS GENERALES DE COMERCIO ONLINE (SGCO) and, sending the printout of the text provided by the complainant, responded on 4/10/2022 indicating that the email capture is not an advertisement as such, but is related to a published advertisement and is generated through the "contact" form of an advertisement to request information. It specifies that it is the screenshot of an email received by the person who published the advertisement titled "XXXXXX." SGCO provides the IP from which that email was sent: IP ***IP.1

Date 2022-07-23 12:59:12

It also provides the text of the advertisement message "XXXXXXXXXXXX," in which sexual services are requested and contact details are provided: C.C.C.- ***EMAIL.3 – ***TELÉFONO.1, Date of publication XXXXXXXX, IP ***IP.1, which as can be seen, does not refer to any data of the complainant.

SGCO stated that "they have deactivated the advertisement 'XXXXXX.'"

SIXTH: On 28/12/2022, an internet inquiry was conducted by the Data Inspection Service in the WHOIS database for the IP address ***IP.1 corresponding to the email that responded to the advertisement "XXXXXX" which contained the complainant's data. The result was that the address corresponds to XXXXXXXXX located in Germany, to which information was requested on 29/12/2022, without receiving a response.

On date XXXXXXXX, the General Subdirector of Data Inspection had verified, in order to obtain evidence for the admissibility of the complaint, that "by entering the website: ***URL.2 and searching using the phone number ***TELÉFONO.1, in 'contacts,' none were found active."

SEVENTH: On 22/03/2023, during preliminary investigation actions (AI/00337/2022) against the respondent, a copy of the advertisements was sent, requiring that they provide the basis for the legitimacy of the data processing exposed in the advertisement of ***URL.1, and it was delivered on 30/03/2023, to a person who was at the residence, not the respondent, without receiving a response.

EIGHTH: The respondent submitted in their allegations to the initiation agreement, a certificate indicating that they were in a residence recovering from an illness from 15/03/2022 to 31/05/2023, a period that also coincides with the dissemination of the advertisement from pasión.com that is attributed to them.

NINTH: The respondent, in allegations to the initiation agreement, did not deny that they had an internet connection associated with the telephone line provided TDE: ***TELÉFONO.1, which the respondent stated belongs to their home, although they added, in their defense, that there are other family cohabitants in their house who use the internet connection installed with "telematic devices that are linked to the aforementioned telephone line" and a desktop computer that they have.

TENTH: In allegations to the respondent's agreement, it is established that the respondent is 75 years old, and a (...) since 30/11/2020, by providing a copy of the ID.

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Certificate from the Department of Labor, Social Affairs, and Families of the Generalitat of Catalonia regarding the resolution of recognition.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2 of the GDPR defines "processing" as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

Article 4.7 of the GDPR defines "data controller" or "controller" as: the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States."

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For its part, Article 6.1 of the GDPR establishes the circumstances under which the processing of

personal data is considered lawful:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

The facts subject to the complaint regarding the website ***URL.1, which contains data of the complainant: photo, mobile number, name, led to the attribution of the aforementioned infringement of Article 6.1 of the GDPR by C.C.C., NIF/CIF: ***NIF.1, as it was identified by the IP address through which the advertisement was published on the website "***URL.1", according to the information provided by the operator TELEFÓNICA DE ESPAÑA.

III

Article 70 of the LOPDGDD identifies those responsible for the infringement, stating that

1. Those subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law include:

a) The controllers of the processing."

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In this case, although it was agreed to initiate sanctioning proceedings against the respondent, due to the announcement that appeared on the website pasión.com, which included the photograph and mobile line of the claimant and her name, personal data that identifies her. In this regard, it should be indicated that the responsible party will be the one who determined the purposes and means of the processing related to the aforementioned announcement on the cited website. The Constitutional Court has repeatedly declared that the principles inspiring criminal law apply, with some nuances but without exceptions, to Administrative Sanctioning Law, making it clear that the principles of the presumption of innocence are fully applicable. The presumption of innocence must prevail without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of ius puniendi in its various manifestations is conditioned by the evidence presented and by an adversarial procedure in which the parties can defend their positions. In this sense, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

"The presumption of innocence, as a truth provisionally affirmed and maintained, requires that the contrary, guilt (STC 124/1983, of December 21), be demonstrated, that is, that it be displaced by adequate evidence required in any case for the Court to be able to convict."

Judgment 44/1989, of the Constitutional Court of February 20, 1989, appeal 931/1987, indicates that "there is a substantial difference between the right to the presumption of innocence, which operates its effectiveness when there is an absolute lack of evidence or when the evidence presented does not

meet procedural guarantees, and the jurisprudential principle in dubio pro reo, which belongs to the moment of the evaluation or appreciation of evidence, and which must be judged when that indispensable evidentiary activity occurs, there is a rational doubt about the actual concurrence of the objective and subjective elements that integrate the criminal type in question.”

In short, those principles prevent imputing an administrative infraction when evidence has not been obtained and accredited that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them.

Therefore, applying the aforementioned principle and the principle of “in dubio pro reo,” which obliges in case of doubt regarding a specific and determining fact to resolve that doubt in the most favorable way for the accused, as previously stated, it is appropriate to declare the closure of the proceedings based on the following elements that concur in the present procedure:

- The respondent stated that other people live in his home who usually connect with different devices. If it can be added that the routers...

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Domestic routers often have passwords on their back, and if they are not varied by their owner, access by third-party visitors is not difficult, as the respondent has indicated the low security of domestic routers.

- The IP address provided by MUBA, responsible for the page where the claimant's data appeared regarding the date and time of the connection to the advertisement, indicates the publication date as 17/07/2021, while the claimant has stated from the outset that it was published on 14/07/2021, and according to the copy of the advertisement on pasión.com, this date appears alongside the reference. The mere change in the publication date of the advertisement may cause the IP from that other time on that other day to correspond to another IP address and possibly to a different owner.

On the other hand, it should be noted that the respondent, aged 75, provided a certificate stating that during the period covering the date of the advertisement, he was in a residence. The facts that the respondent may have obtained the photograph of the young claimant, along with her mobile phone number, and that he ordered the technical means to display on that advertisement website the literal content of an explicitly sexual nature, raise reasonable doubts about the attribution of his responsibility. As a consequence, based on the evidence presented and the documents and actions that are part of this file, no conviction has been generated regarding the respondent's responsibility for the infringement beyond a reasonable doubt, which leads to the filing of the procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the sanctioning procedure initiated against C.C.C., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 a) of the GDPR, qualified for prescription purposes as very serious under Article 72.1.b) of the GDPR.

SECOND: TO NOTIFY this resolution to C.C.C.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the

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Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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